

CITY OF CHEYENNE
CONTRACT MODIFICATION

Contract Modification: #1
Project: Gymnastics Facility site development, engineering, and architectural plan project
Project Number: 7717
Contractor: TDSi
Date Prepared: January 8, 2024

The above referenced contract is amended or modified as set forth in the following and these amendments and modifications of the plans and specifications are agreed to by the parties. All other aspects of the original agreement remain unchanged and in full force and effect.

I. Description of Changes

Addition of Construction (CA) Services and extending the term of the contract to – June 30, 2025.

II. New Contract Items

Addition of CA Services for the oversight of the construction of the City of Cheyenne Gymnastics Facility. During the CA phase the design team (Architect, Civil Engineer, Structural Engineer, Mechanical Engineer, and Electrical Engineer) will be the City's advocate and act as owner's representative to ensure quality of the project is constructed as specified and designed.

III. Schedule

Extending the term of the contract to – June 30, 2025.

IV. Summary

Original Contract Amount	\$293,844.00
Previous Modifications	\$0
Contract Amount Prior to this Modification	\$
This Modification	\$109,500.00
New Contract Amount	\$403,344.00

V. GL Account Information

If requesting a modification to the contract price, please list GL account # to cover the balance of this modification (if using more than (1) GL account, list the dollar amount for each respective account):

GL# 014-17-1734-45-21301 \$109,500

VI. Approvals

City Project Manager: _____ Date: _____

Consultant/Contractor: _____ Date: _____

City of Cheyenne DATE: _____

_____/_____
Mayor Patrick Collins /ATTEST: City Clerk Kristina F. Jones



REVISED Proposal for Professional
Construction Administration Services for
**GYMNASTICS FACILITY SITE
DEVELOPMENT, ENGINEERING AND
ARCHITECTURAL PLANS PROJECT
(RFP #7-23), PROJECT S-6-24**
Cheyenne, Wyoming

January 8, 2024

**City of Cheyenne
Community Recreation and Events Department
2101 O'Neil Avenue
Cheyenne, Wyoming 82001**

ATTN: Jason Sanchez and TJ Barttelbort

**RE: REVISED Proposal for Construction Administration Services for
GYMNASTICS FACILITY SITE DEVELOPMENT, ENGINEERING AND ARCHITECTURAL PLANS
PROJECT (RFP #7-23), PROJECT S-6-24**

Jason and TJ:

We are excited to see the City of Cheyenne Gymnastics Facility Project proceed into construction. As we have discussed, the Construction Administration (CA) Phase of the project is a critical phase of the project. During the CA phase the design team (Architect, Civil Engineer, Structural Engineer, Mechanical Engineer, and Electrical Engineer) will be the City's advocate and act as owner's representative to ensure quality of the project is constructed as specified and designed. If, as you review our proposal, you have any questions, please do not hesitate to contact me.

Thank you again,

A handwritten signature in black ink, appearing to read "Randy Byers".

Randy Byers, AIA, LEED AP^{BD+C}
randy@tdsi.us

SCOPE OF SERVICES

The general description of the Scope of Services for this phase of the project is as follows:

CONSTRUCTION ADMINISTRATION (CA) PHASE			Architect	Civil Engineer	Structural Engineer	Mechanical Engineer	Electrical Engineer
Maximum Length of Construction:			66 weeks				
Attend Pre-Construction Conference	Location:	Cheyenne	1	1	1	1	1
Owner/Architect/Contractor (OAC) Meetings	Frequency:	Every 2 Weeks (on average over 66 weeks)	Yes, with Periodic Site Visits	Yes, with Periodic Site Visits	Yes, with Periodic Site Visits	Yes, with Periodic Site Visits	Yes, with Periodic Site Visits
Periodic site visits over the construction phase (generally with OAC)			35 max. over 66 weeks	4 max.	2 max.	4 max.	4 max.
Preparation of Field Report with photographs or other documentation as appropriate for each site visit			Yes	Yes	Yes	Yes	Yes
Review of contractor's submittals			Yes	Yes	Yes	Yes	Yes
Respond to Requests for Information (RFI's) from the contractor			Yes	Yes	Yes	Yes	Yes
Substantial Completion Inspections			1 max.	1 max.	1 max.	1 max.	1 max.
Preparation of Punch List			1 max.	1 max.	1 max.	1 max.	1 max.
Final Completion Inspections			1 max.	1 max.	1 max.	1 max.	1 max.
Meetings with Owner			1	0	0	0	0
Other Meetings			0	0	0	0	0
Presentations			0	0	0	0	0

POST CONSTRUCTION PHASE	Architect	Civil Engineer	Structural Engineer	Mechanical Engineer	Electrical Engineer
Integration of Contractor Provided Record Drawing Information into CAD Drawings	Yes	Yes	Yes	Yes	Yes
Intermediate Warranty Inspections					
6 th Month Inspections	1	NA	NA	NA	NA
11 th Month Inspections	1	NA	NA	NA	NA
Meetings with Owner	1	0	0	0	0
Other Meetings	0	0	0	0	0
Additional Site Visits (23 rd Month Inspection)	1	0	0	0	0

PROFESSIONAL SERVICES FEES

- Construction Administration (CA) Phase..... **\$109,500**
- Post Construction (PC) Phase..... *Included above*

PRODUCTS OF SERVICE

 In general, the anticipated Products of Service include the following:

- **Construction Administration Phase:**
 - Representing and acting on behalf of the owner
 - Newforma ConstructEx Project Cloud Portal
 - Architect's Field Reports
 - Reviewing and acting on the contractor's submittals
 - Making site visits to observe the work
 - Attending Owner, Architect and Contractor (OAC) meetings.
 - Keeping the owner informed on the progress of the work
 - Reviewing the contractor's applications for payment
 - Responding to requests for information (RFI's) from the contractor
 - Interpreting the contract documents upon request
 - Issuing modifications to the contract documents
 - Making decisions about technical and code issues
 - Preparing construction change directives and proposal requests
- **Post Construction (Warranty Period) Phase:**
 - Record Drawings
 - 6th Month Inspection Report
 - 11th Month Inspection Report
 - 23rd Month Inspection Report

The involvement of the Architect and the Architect's Consultants during the Construction Administration Phase of the project is an integral part of their professional services and is essential to a cohesive, and successful project. If the Owner elects to not retain the Architect and Architect's Consultants for the Construction Administration or Post Construction phases, a written release and indemnification shall be executed by the parties.

SERVICES NOT INCLUDED

- ✚ The Architect's fees do not include the following:
- Preparation of Planning & Zoning applications, maps, etc. including annexation, Site Plan Review, etc.
 - Surveying, except as noted above
 - Environmental Investigations (Phase I or Phase II)
 - Geotechnical Investigations
 - Acoustical Design
 - Interior Acoustic Design
 - Sound Isolation Design
 - Mechanical Noise & Vibration Control
 - Testing or Abatement Design for Hazardous Materials
 - Consultant other than those specifically listed above
 - Special Consultants
 - FF&E Design or Documents
 - Preparation of documents for Approvals required by Governmental Agencies, except as noted above.
 - Manual Distribution of Bid Documents
 - Plan Review Fees
 - Building Permit Fees
 - Printing, except as specifically noted herein
 - **Construction Administration Services – refer to above for scope.**
 - Construction Testing Fees
 - Specialty Inspections
 - Modifications to the documents or repair detailing that are the result of contractor quality control deficiencies
 - Models
 - Post Construction Services, except as noted herein
 - Presentation or Meetings with Government Officials, Financial Institutions, etc. except as noted herein
 - Utility water, sewer, or natural gas piping further than 5 feet outside the building including landscape irrigation.
 - Ground source heat pump system design including loop field design.
 - Fire sprinkler design
 - Energy modeling
 - Life cycle cost analysis of multiple mechanical systems
 - LEED Documentation
 - Detailed Quantity Take-off Construction cost estimates
 - Commissioning of the mechanical systems
 - Ground Vibration Testing and Recommendations
 - Testing and analysis of ground borne environmental vibrations
 - Exterior Sound Isolation Design
 - Detailed Analysis of Environmental Noise (Cadna Model)
 - Security Design
 - Travel outside Cheyenne, Wyoming
 - Professional Liability Coverage beyond limits noted below

The services noted above may be requested by the Owner as Additional Services.

ADDITIONAL SERVICES

- ✚ Additional Services will be invoiced at the Hourly Rates current at the time the services are provided. If the professional services covered by this proposal have not been completed within the stated duration noted, through no fault of the Architect, additional services shall apply. Architect shall give written notice to the owner if additional services are anticipated, prior to additional services occurring.

TDSi RATE SCHEDULE

- ✚ TDSi Hourly Rates are as follows (2024):

Staff Member	Rate Per Hour
○ Randy Byers, AIA, LEED AP ^{BD+C} – TDSi Principal, Architect.....	\$ 200
○ Clint Taylor, AIA, PE, LEED AP ^{BD+C} - TDSi Associate, Architect.....	\$ 150
○ Amber Conwell, AIA - TDSi Associate, Architect.....	\$ 140
○ Will Byers, AIA Associate - TDSi Associate, Project Manager/Intern Architect.....	\$ 130

- *Legal testimony will be invoiced at 2 times the above noted hourly rate; Research and consultation as an Expert Witness, and time giving depositions will be billed at 1.5 times the above noted hourly rate.*

CONSULTANT SERVICES

- ✚ Consultant fees and reimbursable expenses will be billed at cost plus 10% markup.

REIMBURSABLE EXPENSES

- ✚ Expenses incurred in connection with the project will be billed at actual cost plus a 10% markup.

- ✚ Examples of such expenses are:

- out of town travel and subsistence expenses;
- reproduction costs for documents for other than the Architect's use or record;
- postage and shipping charges.

- ✚ In-house expenses, incurred in connection with the project, will be billed at the following rates:

Description	Rate
○ Mileage (for travel outside Cheyenne).....	\$.70 per mile
○ Black & White Copies, 8-1/2" x 11" or 8-1/2" x 14"	\$.30 each
○ Color Copies, 8-1/2" x 11" or 8-1/2" x 14"	\$.70 each
○ Black & White Copies or Prints, 11" x 17"	\$.60 each
○ Black & White Copies or Prints, 18" x 12"	\$ 1.80 each
○ Color Copies or Prints, 11" x 17"	\$ 1.00 each
○ Color Copies or Prints, 18" x 12"	\$ 3.00 each
○ Black & White Plots, 36" x 24"	\$ 5 each
○ Color Plots, 36" x 24"	\$ 60 each
○ USB Flash Drive.....	\$ 25 each
○ AIA Contract Documents will be billed at actual cost plus a 10% markup.	
○ Integrated Project Delivery Coordination Software (Newforma Project Cloud) will be billed at actual cost plus a 10% markup.	

Hourly Rates and Reimbursable Expenses Rates are subject to review and change on a periodic basis, or as circumstances require.

BILLING SCHEDULE

- ✚ E-Invoice Format - All invoices will be emailed to the Client, with an option for the Client to pay online.

INSURANCE

- ✚ Professional Liability Insurance:
 - TDSi currently carries a Professional Liability insurance policy provided by CNA through Victor Insurance Managers Inc. / Continental Casualty Company. The policy is a "claims-made" policy with a maximum limit of liability of \$1,000,000 per claim, with an aggregate limit of \$2,000,000 per year. Our firm has never had a claim against our policy. A Certificate of Insurance will be provided upon written request.
- ✚ General Business Liability Insurance:
 - TDSi carries a General Business Liability policy provided by AMCO Insurance Company and Allied Insurance Company of America. A Certificate of Insurance that enumerates the various coverage limits will be provided upon written request.

✚ TERM OF PROPOSAL

- This proposal will be valid until **February 28, 2024**

Submitted By:



Randy Byers, AIA, LEED AP^{BD+C}
TDSi President
for the firm